

Omanakunjamma vs V.R.Vinayachandran on 11 June, 2025

RSA No.935 of 2006

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2025:KER:40482

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE M.A.ABDUL HAKHIM

WEDNESDAY, THE 11TH DAY OF JUNE 2025 / 21ST JYASHTA, 1947

RSA NO. 935 OF 2006

AGAINST THE JUDGMENT & DECREE DATED 31.01.2006 IN AS NO.219 OF 2002
OF PRINCIPAL SUB COURT, ALAPPUZHA ARISING OUT OF THE JUDGMENT & DECREE
DATED IN OS NO.1281 OF 1999 OF PRINCIPAL MUNSIF COURT, ALAPPUZHA

APPELLANT/APPELLANT/PLAINTIFF:

OMANAKUNJAMMA, D/O VIJAYAPPA PANICKER
VADAYAKKATTIL, RESIDING AT THAIPARAMBIL VEEDU,,
PATHIRAPPALLY P.O.,, PATHIRAPPALLY VILLAGE.ALAPPUZHA

BY ADVS.
SHRI.P.B.KRISHNAN (SR.)
SRI.P.B.SUBRAMANYAN
SRI.SABU GEORGE
SMT.B.ANUSREE
SRI.MANU VYASAN PETER

RESPONDENTS/RESPONDENTS/DEFENDANTS:

- 1 V.R.VINAYACHANDRAN
VELIYILAYA VADAYAKKATTU CHETTUKADU,, PATHIRAPPALLY P.O.,
PATHIRAPPALLY P.O.,, PATHIRAPPALLY VILLAGE.
- 2 V.R.JAYACHANDRAN OF DO. DO.
- 3 V.R.CHANDRA RAJI

DO. DO.

4 Lyla DO.VIJAYALEKSHMI OF DO. DO.
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- 5 THANKAMANY W/O.VISWANATHAN
NILAM NIKARTHU VADUKODU, SOUTH OF JAYACHANDRA LODGE,
MULLACKAL, ALAPPUZHA.
- 6 JANAMONIAMMA W/O.HARIDAS
PUTHENVELI, NEAR KALAVOOR H.S., , KALAVOOR, ALAPPUZHA.
- 7 PRANAV S/O.JAYAMONI AMMA
DO. DO.
- 8 PRAMADA D/O.JAYAMONI AMMA
DO. DO.

BY ADVS.
SHRI.K.I.MAYANKUTTY MATHER (SR.)
SRI.T.GOPALAKRISHNAN

THIS REGULAR SECOND APPEAL HAVING BEEN FINALLY HEARD ON 02.06.2025 ,
THE COURT ON 11.06.2025 DELIVERED THE FOLLOWING:
RSA No.935 of 2006

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JUDGMENT

(Dated this the 11th day of June, 2025)

1. Plaintiff is the appellant. There are two items of property scheduled in the plaint. Plaintiff schedule Item No.1 is 76 cents of land and the trees & buildings therein. Plaintiff Schedule Item No.2 is 8.72 cents of land. The suit was filed for partition of Plaintiff Schedule Item No. 1 property allotting 1/4 share to the plaintiff with mesne profits and also for permanent prohibitory injunction restraining the defendants from trespassing into Plaintiff Schedule Item No.2 property or cutting and removing trees standing in Item Nos.1 and 2 properties and from committing any act of waste and from registering any Partition Deed regarding Item No.1 property without joining the plaintiff as a party.

2. The claim of the plaintiff is that Plaint Schedule Item No.1 property was allotted to one Vijayappa Panicker and his siblings, Viswappa Panicker, Kunjamma, Vijayalekshmi Amma, 2025:KER:40482 Thankamony and Jayamoni Amma as per Ext.A1 Partition Deed of the year 1961. Plaintiff is the only daughter of the deceased Vijayappa Panicker. The defendants 1 to 4 are the legal heirs of the deceased Vijayalekshmi Amma. Defendants 5 and 6 are Thankamony and Jayamoni Amma. Defendants 7 and 8 are the children of the 6th defendant. Viswappa Panicker died unmarried and issueless. Hence, the Plaint Schedule Item No.1 Property is liable to be partitioned allotting $\frac{1}{4}$ share to the plaintiff, $\frac{1}{4}$ share to the defendants 1 to 4, $\frac{1}{4}$ share to the 5th defendant and $\frac{1}{4}$ share to the 6th defendant. Plaint schedule Item No.2 property exclusively belonged to Vijayappa Panicker. After his death, the plaintiff as his daughter and only legal heir is in possession of Plaint Schedule Item No.2 property.

3. The defendants 1 to 8 filed joint Written Statement contending, inter alia, that Vijayappa Panicker was a bachelor till his death; that the allegation that the plaintiff is the daughter and only legal 2025:KER:40482 heir of Vijayappa Panicker is false; that plaintiff is not the daughter of Vijayappa Panicker, and she is not the legal heir of Vijayappa Panicker; that the plaintiff is the daughter of Smt. Annamma; that her husband is Joseph; that the plaintiff is not the legitimate daughter of Vijayappa Panicker and hence not entitled to any interest in the properties of Vijayappa Panicker; that the defendants 5, 6 and mother of defendants 1 to 4 are the legal heirs of the deceased Vijayappa Panicker.

4. On the side of the plaintiff, the plaintiff was examined as PW1, her mother was examined as PW2 and three other witnesses were examined as PWs 3 to 5 to prove the cohabitation of Vijayappa Panicker with PW2. Exts.A1 to A10 were marked from the side of the plaintiff. The 1st defendant was examined as DW1 and marked Exts. B1 and B2.

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5. The Trial Court dismissed the suit finding that there is no convincing evidence that the plaintiff was born in a legal wedlock entered into by Vijayappa Panicker and PW2.

6. The plaintiff filed Appeal before the First Appellate Court and the First Appellate Court dismissed the Appeal confirming the judgment and decree passed by the Trial Court finding that there is no sufficient pleading regarding the valid marriage between the Vijayappa Panicker and mother of the plaintiff who was examined as PW2; that no sufficient credible and legal evidence is adduced to prove the marriage between Vijayappa Panicker and PW2; that when the defendants have pleaded that the plaintiff is not the legitimate daughter of Vijayappa Panicker, the plaintiff ought to have filed a Reply and evidence should have been adduced to prove that there was a valid marriage between Vijayappa Panicker and her mother; that in the absence of pleading there is no place for evidence on the question of 2025:KER:40482 legitimacy of the plaintiff; that there is no credible and legal evidence to prove the marriage between Vijayappa Panicker and PW2; that there is no credible and legal evidence regarding the living together of Vijayappa Panicker and PW2; that Section 16 of the Hindu Marriage Act, 1955 arises only if there is a marriage and it is available only to children born out of marriages which are void under S.11; that the present case is a case of no

marriage; that the plaintiff has not succeeded to prove that she was born in a wedlock between Vijayappa Panicker and her mother and therefore S.16(1) of the Hindu Marriage Act cannot come to the assistance of the plaintiff.

7. This Court admitted the above Regular Second Appeal on the following substantial questions of law as per the order dated 21.11.2023:

1. Is not the benevolent provision of S.16 of the Hindu Marriage Act extended to cover cases in which the offspring failed to prove the factum of marriage by satisfactory evidence?

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2. Are the Courts below correct in coming to the conclusion that there is no valid marriage on the basis that the spouses belong to different religions at the time of marriage? Is there any bar for a Hindu marrying a Christian who has been converted into Hinduism in accordance with the Hindu Rites?

3. Has not the definition of legitimate kinship defined under S.2(j) of the Hindu Succession Act circumscribed by amendment of S.16 of the Hindu Marriage Act?

8. I heard the learned Senior Counsel Sri.P.B.Krishnan instructed by Adv.Sri. Manu Vyasan Peter for the appellant and learned counsel for the respondents Smt.Parvathi.S.

9. The learned Senior counsel for the appellant contended that long cohabitation between Vijayappa Panicker and PW2 mother of the plaintiff, is proved by Exts.A2, A3 &A5. It would prove that Vijayappa Panicker and PW2 had been residing together from 1977 to 1992. As per Ext.A5, the plaintiff was born on 15.03.1977. Ext.A2 SSLC Book of the plaintiff is dated 30.03.1992. In both these documents, Vijayappa Panicker is 2025:KER:40482 shown as the father of the plaintiff. Vijayappa Panicker was shown as the father of the plaintiff only due to the fact that he had been in cohabitation with PW2 from 1977 to 1992. Marriage is to be presumed by long cohabitation. If such a marriage is found to be void, the plaintiff is entitled to get the benefit of the statutory presumption under S.16 of the Hindu Marriage Act. The learned Senior Counsel relied on the decisions of the Hon'ble Supreme Court in Kalliani Amma v. K. Devi [1996 (4) SCC 76], Tulsa and others v.Durghatiya and others [2008 (4) SCC 520], Bharatha Matha and another v. R.Vijaya Renganathan and others [2010 (11) SCC 483], Revanasiddappa and others v. Mallikarjun and others [2023 (10) SCC 1] and Shiramabai and others v. The Captain, Record Officer for O.I.C Records and others [AIR 2023 SC 3920] in support of his contentions.

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10. On the other hand, the learned counsel for the respondents contended that the specific claim of the plaintiff is that she is the daughter of Vijayappa Panicker. The said allegation is specifically denied by the defendants in their Written Statement. In such case, the burden is entirely upon the

plaintiff to prove that she is the daughter of Vijayappa Panicker. It is well settled by the decision of this Court in Prabhavini Devi and another v. Sudha and others [2017 (2) KHC 452] that an illegitimate child born out of an illicit relationship of parents without a solemnisation of marriage is not entitled to get succession to the property of the father under the Hindu Succession Act even if paternity stands proved.

11. I have considered the rival contentions. In the plaint the specific case of the plaintiff is that she is the daughter of Vijayappa Panicker and only heir of Vijayappa Panicker entitled to get 1/4 share belonged to him in Plaint Schedule Item No.1 property.

2025:KER:40482 She had not disclosed the details of her mother in the plaint. The plaint is filed as if she is the legitimate daughter of Vijayappa Panicker. If PW2 was the legally wedded wife of Vijayappa Panicker, she also would have been a legal heir of Vijayappa Panicker. When the plaintiff claims that she is the only legal heir of Vijayappa Panicker, the necessary implication is that PW2, who is her mother, was not a legally wedded wife of Vijayappa Panicker to become his legal heir. In the Written Statement, at one stage, the defendants contended that the plaintiff is not the daughter of Vijayappa Panicker. At another stage, it is stated that plaintiff is not the legitimate daughter of Vijayappa Panicker. Such pleadings in a way do admit that the plaintiff is the illegitimate child of Vijayappa Panicker. In Exts.A2,A3,A5 and A9 the name of the father of the plaintiff is shown as Vijayappa Panicker. It probabalizes that Vijayappa Panicker had accepted the plaintiff as his daughter. But that 2025:KER:40482 alone is not sufficient for the plaintiff to inherit the estate of the deceased Vijayappa Panicker.

12. It is held in the decision of the Hon'ble Supreme Court in Tulsa (supra) that continuous cohabitation of a woman with a man as husband and wife and their treatment as such for a number of years, may rise to a presumption of marriage; that such a presumption drawn from long cohabitation is rebuttable and if there are circumstances which weaken and destroy that presumption, court cannot ignore them. The Hon'ble Supreme Court specifically referred to the principle laid down by the Privy Council that Law presumes in favour of marriage and against concubinage when a man and woman have cohabited continuously for a number of years and that such presumption could be drawn under S.114 of the Evidence Act. In the decision in Bharatha Matha (supra), the Hon'ble Supreme Court held that S.16 of the Hindu Marriage Act intends to bring about social 2025:KER:40482 reforms, conferment of social status of legitimacy on a group of children otherwise stated as illegitimate, as its prime object. In the decision in Kalliani Amma (supra) the Hon'ble Supreme Court held that Hindu Marriage Act, 1955 is a beneficial legislation and therefore it has to be interpreted in such a manner as advances the object of the legislation; that the Act intends to bring about social reforms; that conferment of social status of legitimacy on a group of innocent children who are otherwise treated as bastards, is the prime object of S.16. It is further held that in view of the legal fiction contained in S.16 the illegitimate children, for all practical purposes including succession to the properties of their parents have to be treated as legitimate. It is held in Revanasiddappa(supra) by the Hon'ble Supreme Court that while conferring legitimacy in terms of sub-section (1) on a child born from a void marriage and under sub-section (2) to a child born from voidable marriage 2025:KER:40482 which has been annulled, the legislature has stipulated sub- section (3) of S.16 that such child will have right to or in the property

of parents and not in the property of any other person and that a child who is legitimate under Sub-Section 1 or 2 of Section 16 of Hindu Marriage Act would for the purpose of Section 3(1)(j) of the Hindu Succession Act fall within the ambit of explanation 'related by legitimate kinship' and cannot be regarded as an illegitimate child for the purposes of the proviso. In Prabhavini Devi (supra) this Court held that when there was no solemnization of marriage at all, Section 16(1) has no application; that an illegitimate child is entitled to inherit to the estate of the father only if the marriage of parents was null and void as provided under S.11 of the Act.

13. In the light of the legal propositions laid down in the aforesaid decisions, if the plaintiff wants to succeed in the suit, she has to prove either that (1) she was born out of a lawful marriage 2025:KER:40482 between Vijayappa Panicker and PW2 or that (2) there had been long cohabitation between Vijayappa Panicker and PW2 in order to presume marriage or that (3) there was a marriage between Vijayappa Panicker and PW2 and the same was void so as to attract S.16(1) of the Hindu Marriage Act.

14. Since the plaintiff failed to prove a valid marriage between Vijayappa Panicker and PW2, the plaintiff could not be treated as a legitimate child of Vijayappa Panicker.

15. The learned Senior Counsel relies on Exts. A2, A3 & A5 to prove long cohabitation between Vijayappa Panicker and PW2. According to the learned Senior Counsel since Ext.A5 Certificate of birth of the plaintiff is dated 21.03.1977 and Ext.A2 SSLC Book is dated 30.03.1992 and in both these documents, Vijayappa Panicker is shown as father of the plaintiff, long cohabitation from 1977 to 1992 between Vijayappa Panicker and PW2 is proved and hence marriage could be presumed. As 2025:KER:40482 rightly found by the Trial court as well as the First Appellate Court, if Vijayappa Panicker and PW2 had been residing together for such a long period, there would have been some documents to prove their cohabitation. Ext.B1 Ration Card and Ext.B2 Voters List would prove that they had not been residing together. That apart, the question whether Vijayappa Panicker and PW2 had been in cohabitation or not is a question of fact on which the Trial Court as well as the first Appellate Court entered a specific finding. This Court can interfere with the said finding only if such a finding is perverse. There is no material before this Court to hold that the finding of the Trial Court as well as the First Appellate Court with respect to it is perverse. When there is no evidence to prove the long cohabitation of Vijayappa Panicker and PW2, there is no question of presumption of their marriage to hold that the plaintiff is the legitimate child in their marital relationship.

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16. Even though the defendant has stated that the plaintiff is not the daughter of Vijayappa Panicker, in the subsequent part of the Written Statement, they have stated that the plaintiff is not the legitimate daughter of Vijayappa Panicker. It is seen from Ext.A2, A3, A5 and A9 that Vijayappa Panicker had accepted the plaintiff as his daughter. But that alone is not sufficient for the plaintiff to claim inheritance of the property of Vijayappa Panicker. In the absence of any valid marriage, the plaintiff has to be treated as an illegitimate child of Vijayappa Panicker. Section 16 of the Hindu Marriage Act provides for the legitimacy of children of void and voidable marriages. As held in the decision in Prabhavini Devi (supra), S.16 has no application where there was no solemnization of

marriage. Only if there was a marriage and the same is null and void under Section 11, Section 16(1) will be available to legitimize the child born out of the marriage. In the case at hand, there is no proof of any 2025:KER:40482 marriage to hold it as valid or void. There is not even a long cohabitation to presume marriage. In such circumstances, the plaintiff cannot claim inheritance from the property of Vijayappa Panicker. The substantial Question No.1 is answered in negative and against the appellant. Substantial question Nos. 2 and 3 do not arise for consideration in the matter and no argument was addressed with respect to the same.

17. I do not find any ground or reason to interfere with the judgment and decree passed by the Trial Court, which is confirmed by the First Appellate Court. The Regular Second Appeal is dismissed without costs.

SD/-

M.A.ABDUL HAKHIM JUDGE jma